

1.

CASE #	CASE NAME	HEARING NAME
CVMV2506551	GUTIERREZ HERNANDEZ vs STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY	PETITION FOR ORDER COMPELLING ARBITRATION

Tentative Ruling:

GRANT. Parties to agree on an arbitrator.

Petitioners' demand to arbitrate is not premature. Petitioners have now provided oral testimony under oath and have provided requested documents to State Farm. State Farm seeks additional records, such as cellular phone records, photographs with metadata, etc., but State Farm provides no authority that it is entitled to those records. To the extent that further discovery is necessary, the parties can address that matter with the arbitrator.

No sanctions.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2403972	WATKINS vs ANDREW PAUL ORDON M.D.	MOTION FOR SUMMARY ADJUDICATION ON 2ND AMENDED COMPLAINT

Tentative Ruling:

GRANT the Motion for Summary Adjudication.

On June 15, 2026, this motion came on for hearing. The court granted Plaintiff's request for a continuance of the hearing and ordered Plaintiff to file a declaration from her doctors or other medical experts in opposition to Defendant's motion for summary adjudication by 7/15/26. Plaintiff has failed to do so and instead has filed a self-serving declaration requesting additional time and a further continuance. The request for an additional continuance does not comply with the requirements of CCP § 437c(h). Plaintiff does not identify what she anticipates the testing will reveal or when she anticipates the testing will be completed. She has not shown that the proposed discovery will lead to facts essential to justify opposition.

SUSTAIN Defendant Paul Ordon, M.D.'s Evidentiary Objections, 1-14, to the Supplemental Declaration of Plaintiff Linda Faye Watkins.

SUSTAIN Defendant Andrew Paul Ordon, M.D.'s ("Ordon") evidentiary objections, Nos. 1 through 30, to Plaintiff's Evidence in Opposition to the Motion for Summary Adjudication. Plaintiff's declaration in support of the opposition is replete with hearsay,

speculation, conjecture, and statements based on medical reports and writings that have not been properly authenticated. The seminal case of *Garibay v. Hemmat* (2008) 161 Cal.App.4th 735, provides that a party opposing a motion for summary judgment must submit relevant medical expert declarations in opposition to the Defendant's medical expert declaration offered in support of the motion for summary judgment. Here, Plaintiff pulls snippets from the medical records and writings, and recounts conversations that she has had with various consulting physicians, as evidence in support of her opposition. This is not allowed under the rules of evidence.

GRANT the Motion for Summary Adjudication.

Medical Battery

Defendant has presented admissible evidence that Plaintiff consented to a facelift surgery and that Plaintiff has no evidence that Defendant intentionally performed a different or unauthorized procedure. Plaintiff's assertion that silicone was injected rests solely on speculation and her interpretation of subsequent medical consultations. Defendant has met his initial burden of summary judgment and Plaintiff has failed to show a triable issue of material fact.

Fraud

Plaintiff cannot establish the elements of fraud because there is no evidence that Ordon knowingly made a false statement or intentionally concealed a material fact with intent to defraud Plaintiff. Plaintiff has testified that she did not observe any injections during surgery, and she admits that she has no personal knowledge that Ordon injected her with silicone. No physician has ever told her that Defendant injected silicone. Plaintiff's belief that silicone was injected rests solely on her interpretation of subsequent medical consultations. Plaintiff fails to meet her burden of creating a triable issue of material fact.

Intentional Infliction of Emotional Distress

Plaintiff cannot establish the required elements of a claim of Intentional Infliction of Emotional Distress (IIED); extreme and outrageous conduct with the intent to harm or severe emotional distress. The undisputed evidence shows that Defendant provided elective cosmetic care for which Plaintiff gave written informed consent, performed the procedures reflected in the operative report, did not inject liquid silicone or any filler, provided routine postoperative follow-up care, and referred Plaintiff to a specialist evaluation when she later complained of swelling. Defendant has met his initial burden and Plaintiff has failed to establish a triable issue of material fact.